



Appeal Decision

Site visit made on 2 September 2026

by L Reid BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17 September 2026

Appeal Ref: 6012043

The Granary, Colemans Farm, Colemans Lane, Toot Hill Road, Ongar CM5 9QN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Ian Gorst against the decision of Epping Forest District Council.
 - The application Ref is EPF/0128/26.
 - The development proposed is the erection of a traditionally designed three-bay cart lodge.
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Decision

1. The appeal is allowed and planning permission is granted for the erection of a traditionally designed three-bay cart lodge at The Granary, Colemans Farm, Colemans Lane, Toot Hill Road, Ongar CM5 9QN in accordance with the terms of the application, Ref EPF/0128/26, subject to the following conditions:
 - 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
 - 2) The development hereby permitted shall be carried out in accordance with the following approved plans: Location Plan, GCB-002A, GCB-004A, GCB-005A, GCB-007A, GCB-008A, GCB-009A, GCB-1010A.
 - 3) No development above ground level shall take place until details of the materials to be used in the construction of the external surfaces of the development hereby permitted have been submitted to and approved in writing by the Local Planning Authority.

The development shall be carried out in accordance with the approved details.
 - 4) The development hereby permitted shall not be occupied at any time other than for purposes ancillary to the residential use of the dwelling known as The Granary, Colemans Farm, Colemans Lane.

Preliminary Matters

2. Since the appeal was made, the Government published a revised National Planning Policy Framework (the Framework). Both main parties have had the opportunity to make representations, and I have taken the comments received into account.
3. As part of the appeal, the appellant has submitted new evidence in the form of a Heritage Report (dated 10 June 2026). This report would not result in a substantial or fundamental change to result in a different application. The Council has also had the opportunity to comment on the report. Given its nature, the acceptance of this report would not deprive those who should have been consulted of the

opportunity of such consultation. I have therefore considered it in determining this appeal.

4. The reason for refusal refers to the listed group at Colemans Farm. The Historic England List Entry (Number: 1168848) lists the name as Colemans Farmhouse, which I shall also use.

Main Issues

5. The main issues are:

- Whether the proposed development is inappropriate development in the Green Belt, including the effect on openness, having regard to the Framework and any relevant development plan policies; and,
- Whether the proposed development would preserve the setting of Grade II listed building Colemans Farmhouse, or any features of special architectural or historic interest which it possesses.

Reasons

Green Belt

6. The appeal site is in the Green Belt. Policy DM4 of the Epping Forest District Local Plan 2011 – 2033 Part One Adopted March 2023 (the Local Plan) sets out the purposes of the Green Belt and states that planning permission will not be granted for inappropriate development in the Green Belt, except in very special circumstances. It also confirms that the construction of new buildings is inappropriate development, with a number of exceptions, reflecting those set out in the Framework at the time the plan was adopted.
7. The appellant contends that the proposed development meets paragraph (1)(e) of Policy GB7 of the Framework, which allows for the redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of the Green Belt. Although the Council's case is silent on this matter, I must consider whether that exception applies.
8. The Granary is a large, detached house. The proposed development is for the erection of a freestanding building comprising two open-sided parking bays and one enclosed bay for storage.
9. Having regard to the definition of previously developed land set out within the Framework, there is nothing before me to indicate that the appeal site was not lawfully developed. The house is clearly a permanent structure, and from my observations at the site visit and the information before me, the proposed development would be positioned within the driveway which forms part of the curtilage of the developed land, and it would be located on an area of hard standing. Furthermore, the appeal site is not within a built-up area.
10. Given these factors, the appeal site is previously developed land. The proposed development could therefore reasonably be described as infilling or redevelopment of previously developed land. In accordance with the Framework, it may therefore comprise an exception to inappropriate development if it would not cause substantial harm to the openness of the Green Belt.

11. Whilst the proposed development would inevitably result in some loss of spatial openness through the introduction of additional built form, the extent of that harm would be reduced by the building's modest scale, footprint and design. In visual terms, opportunities for public views of the building would be limited, and it would largely be experienced in private views. Where visible, it would be perceived as a subordinate structure associated with the dwelling and contained within the existing residential curtilage. Taking these factors into account, I find that the proposed development would result in a moderate degree of harm to the openness of the Green Belt, a conclusion that is consistent with that reached by the Council.
12. For these reasons, as the proposed development relates to the redevelopment of previously developed land and would not cause substantial harm to the openness of the Green Belt, it would meet the exception of Policy G7(1)(e) of the Framework. I therefore conclude that the proposed development would not be inappropriate development in the Green Belt. Accordingly, it would comply with Policy DM4 of the Local Plan and the Framework.
13. Having reached this conclusion, it is not necessary for me to consider whether the proposed development would meet any of the other exceptions listed in the Framework. Furthermore, where a development is found not to be inappropriate development, it should not be regarded as harmful either to the openness of the Green Belt or to the purposes of including land within the Green Belt.

Colemans Farmhouse

14. Whilst there is no longer the concept of less than substantial harm, Policy DM7 of the Local Plan adopts the same broad approach as Policy HE6 of the Framework, in seeking to conserve heritage assets, harm to be weighed against the public benefits, with substantial harm or the total loss to be demonstrated it is necessary to achieve substantial public benefits. Policy DM7 of the Local Plan is therefore consistent with the Framework and is given full weight.
15. Section 66(1) of the Town and Country Planning (Listed Buildings and Conservation Areas) Act 1990 requires that special regard is had to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.
16. Coleman's Farmhouse is a Grade II listed building. The list entry notes that it dates back from the 16th century or earlier. In so far as relevant to this appeal, it partly derives its significance from its historic agricultural use and architectural character, as well as its setting within an isolated courtyard farmstead surrounded by open countryside. This setting contributes positively to the understanding and the special interest and significance of Coleman's Farmhouse, along with the ability to appreciate it. I have had special regard to this matter in considering the appeal.
17. Coleman's Farmhouse retains some historic agricultural buildings, including the former barn and former dairy and calf shed, which are curtilage listed. The survival of these buildings and their historic arrangement within the farmstead positively contributes to an understanding of the site's agricultural origins and historic development. By contrast, The Granary is a later addition that replaced a large agricultural shed and therefore does not share the same historic or functional relationship with Coleman's Farmhouse. Although its design draws upon the appearance of a traditional threshing barn, it occupies a separate residential plot

and is separated from Colemans Farmhouse by a brick wall, limiting the relationship between the two.

18. Whilst the appeal site forms part of the setting of Colemans Farmhouse by virtue of its location within the farmstead, it is physically distinct from it. Moreover, the historic layout of the farmstead has evolved over time, including through the redevelopment of the appeal site. Its historic and functional association with Colemans Farmhouse is limited and plays a minor role in how the wider farmstead is experienced and understood. I therefore find that the appeal site makes a neutral contribution to the special interest and significance of Colemans Farmhouse.
19. Turning to the effect of the proposed development, whilst it would interrupt a small part of the view of Colemans Farmhouse from near the farmstead entrance on Colemans Lane, such views are fleeting, and the effect would be negligible. The proposed building would be located close to Colemans Farmhouse, but it would be behind the boundary wall. From the other public vantage point along Colemans Lane, near the entrance to the main farmhouse, the proposed development's visibility would be limited and would therefore not impair the ability to understand or appreciate the significance of the farmstead group.
20. The proposed development would have a footprint smaller than Colemans Farmhouse and would not be nearly comparable to it in terms of scale. The submitted section drawings indicate that it would also be lower than Dairy Cottage and the single-storey garage to the rear of Colemans Farmhouse. It would therefore remain subordinate to these buildings and would not visually compete with them. Its scale and massing would be consistent with the curtilage listed group. In addition, the proposed half-hipped roof reflects a feature of Colemans Farmhouse, which includes a half-hipped roof at one end.
21. The more recently approved housing, including The Granary, has introduced a residential character to this part of the wider farmstead, reducing the extent to which the area can still be perceived as reflecting a traditional farmstead arrangement. Consequently, the proposed development would be viewed in the context of an already domesticated residential environment, rather than as part of a historic agricultural courtyard. In this regard, the domestic appearance of the proposed development would not appear incongruous within this context.
22. Taking all of the above into account, I find that the proposed development would not impinge on the important functional and visual relationship with Colemans Farmhouse and the curtilage listed buildings. It would not erode any of the elements which contribute positively to the special interest of Colemans Farmhouse. I therefore conclude that the proposed development would preserve the setting of Colemans Farmhouse and would not harm its significance.
23. Accordingly, it would comply with Policies DM7 and DM9 of the Local Plan. These policies, amongst other things, require heritage assets and their settings to be preserved, having regard to the special architectural or historic interest of its character, appearance and the contribution made by its setting. It would also comply with Policy HE4 of the Framework which requires heritage assets, as an irreplaceable resource, to be conserved in a manner appropriate to their significance.

Other Matters

24. Although not a reason for refusal, the Council's Delegated Report takes issue with the design of the proposed development. Whilst it would be of a similar height to Little Orchard, it would have a narrower width and shallower depth, resulting in a smaller overall scale. Owing to its modest scale and proportions, the inclusion of doors and windows would not undermine the proposed development's subordinate relationship with The Granary. Its design would therefore be acceptable.

Conditions

25. I have imposed the statutory implementation condition [1], along with a condition listing the approved plans to provide certainty [2].
26. A condition seeking details of the proposed materials is also necessary in the interests of maintaining the character and appearance of the area and the setting of Colemans Farmhouse [3]. A condition requiring the proposed building to be used for purposes ancillary to the main house is necessary to accord with the terms of the application and in the interests of certainty [4].
27. Based on the information available, this permission is considered to be one which will not require the approval of a biodiversity gain plan before development is begun because a statutory exemption applies.

Conclusion

28. For the reasons given above the appeal should be allowed.

L Reid

INSPECTOR